

PLE5027: FAMILY LAW PRACTICE

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Family Law Practice

Subject Code

PLE - Professional Legal Education

Course Number

5027

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

2

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

This course aims to enable students to discover how Family Law operates in real-life situations. It prepares students to enter the legal profession as a trainee solicitor or a bar pupil undertaking family law work in Hong Kong. Students will apply family law principles, procedures, and practice in the following areas:

- Main suit, including the jurisdiction issue
- Custody
- Children's non-removal and relocation cases
- Child abduction
- Concept of parental responsibility
- Ancillary relief
- Domestic violence
- Enforcement proceedings
- Appeal against interlocutory or final orders
- Alternate dispute resolution, including mediation, collaborative law practice and private financial adjudication
- Drafting skills

The structure of the course will be in the form of 8 large group lectures and 8 small group sessions. Guest lecturers will be invited on relevant topics (see detailed syllabus below). Small groups will provide students with the chance to engage in practical, hands-on activities as described below in the detailed syllabus.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Provide advice to a client, after analytical and critical examination of the law and facts, in regard to: - the marriage law in Hong Kong, including what constitutes an invalid marriage - the legal recognition of cohabitation, transgendered, and same-sex relationships - relief for domestic violence - the relevant law and practice for getting divorced in Hong Kong - alternative options for divorce - relief for children during a marriage and upon divorce - other applications relating to children obtaining ancillary relief - the role of mediation and collaborative practice in family law disputes.		x	x	x
2	Discover creative and solution-focused outcomes for a client by applying appropriate case analysis skills and case management skills to the relevant facts.		x	x	x
3	Prepare and draft pleadings, affidavits and other relevant documents for family law applications in the District Court in relation to the above topics.				x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	1	Teaching and learning for this ILO will be based on a mixture of lectures and interactive discussions in small groups.	1	
2	2	Teaching and learning will primarily be based on discussions in small groups, problem-solving activities, and there will be a particular focus on practical drafting exercises	2, 3	

Continuous Assessment (%)

0

Examination (%)

100

Examination Duration (Hours)

3

Minimum Examination Passing Requirement (%)

50

Additional Information for ATs

One final practical-exercise: CILO No. 1,2,3.

The use of Generative AI tools is not allowed.

Assessment Rubrics (AR)

Assessment Task

Written examination at the end of semester

Criterion

To pass this course students must obtain an aggregate mark of 50%.

Excellent

(A+, A, A-) The work meets the client' s needs in all respects, evidenced by:

- a superior grasp of the issues and subject matter
- good organization
- a capacity to analyze and synthesize
- possession of an extensive knowledge base

- a superior use of lawyer

Good

(B+, B, B-) The work meets the client' s needs in most respects, evidenced by:

- a strong grasp of the issues and subject matter
- some critical and analytical ability
- an understanding of the applicable law and procedures
- a good use of lawyer skills.

Fair

(C+, C, C-*) The work meets the client' s main needs, evidenced by:

- an adequate grasp of the issues and subject matter
- an ability to develop solutions to the client' s problems
- a basic use of lawyer skills.

Marginal

(D*)

Failure

(F) The work does not meet the client' s needs, evidenced by little or an insufficient:

- grasp of the issues and subject matter
- critical and analytical ability
- understanding of the applicable law

Additional Information for AR

* Note: The University's grades C- and D are not used in the PCLL.

Part III Other Information

Keyword Syllabus

- Main Suit
- Custody, care and control and non-removal of children
- Relocation cases
- Children abduction
- Concept of Parental Responsibility
- Ancillary Relief
- Domestic Violence
- Alternate Dispute Resolution
- Appeal

Reading List

Compulsory Readings

Title	
1	Philippa Hewitt, Family Law and Practice in Hong Kong, Sweet & Maxwell, 2018.
2	Course Materials for this course

Additional Readings

Title	
1	Marriage Reform Ordinance Cap. 178
2	Marriage Ordinance Cap. 181
3	Matrimonial Causes Ordinance Cap. 179 [and Rules]

4	Matrimonial Proceedings and Property Ordinance Cap. 192
5	Guardianship of Minors Ordinance Cap. 13
6	Domestic and Cohabitation Relationships Violence Ordinance Cap. 189
7	Child Abduction and Custody Ordinance Cap. 512
8	Separation and Maintenance Orders Ordinance Cap. 16
9	Children Proceedings (Parental Responsibility) Bill